AS TO THE ADMISSIBILITY OF

Application No. 25522/94
by Milan RAI, Gill ALLMOND, and "NEGOTIATE NOW"
against the United Kingdom

The European Commission of Human Rights (First Chamber) sitting in private on 6 April 1995, the following members being present:

Mr. C.L. ROZAKIS, President
Mrs. J. LIDDY
MM. E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
M.P. PELLONPÄÄ
B. MARXER
B. CONFORTI
N. BRATZA
I. BÉKÉS
E. KONSTANTINOV

Mrs. M.F. BUQUICCHIO, Secretary to the Chamber

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 18 October 1994 by Milan Rai, Gill Allmond and "Negotiate Now" against the United Kingdom and registered on 3 November 1994 under file No. 25522/94;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The first applicant is a Hong Kong citizen born in 1965 and resident in London. The second applicant is a British citizen born in 1963 and also resident in London. Both applicants are members of the an unincorporated association "Negotiate Now", which is the third applicant.

The applicants are represented before the Commission by Mr. John Wadham of Liberty, a solicitor practising in London.

The facts as submitted by the applicants may be summarised as follows.

a. Particular circumstances of the case

"Negotiate Now" is a non-partisan, non-governmental organisation which seeks to promote peace in Northern Ireland and espouses the policy that the Government must support peace negotiations without a prior cease-fire.

The applicants wished to hold a rally in Trafalgar Square in London in order to promote their views and to ask the Government publicly to enter into negotiations without preconditions.

The third applicant contacted the Department of the National Heritage requesting permission to hold a "stationary" rally in Trafalgar Square on Saturday 21 May 1994 to be addressed by speakers

and stating the estimated number of participants was to be 1,000.

The Commissioner of the Metropolitan Police was informed of the applicants' intentions and his view was that the proposed rally would create no danger to public order. The applicants expended monies for leaflets and posters.

On 21 April 1994, the Department of National Heritage refused permission for the rally to take place:

> "This is in accordance with Government policy on meetings in Trafalgar Square on issues related to Northern Ireland."

On 4 May 1994, Mr. Tony Benn, Member of Parliament, requested the Secretary of State for National Heritage to reconsider the refusal.

On 16 May 1994, the Secretary of State replied confirming the decision not to grant permission for the rally:

> "It has been the policy of successive Governments since 1972 to refuse permission for any public demonstrations or meetings on the issue of Northern Ireland in Trafalgar Square. This policy has been applied in an entirely impartial way. The only, very rare, exceptions have been approval for entirely uncontroversial peace demonstrations, such as the Peace People in the 1970's. My judgment is that the proposed "Negotiate Now" rally does not come into this category."

The Secretary of State stated however that demonstrations on Northern Ireland may be held in Hyde Park and identified the person whom the applicants could approach to organise a demonstration in Hyde Park.

On 17 May 1994, the applicants sought leave to bring proceedings for judicial review to quash the decision made on 21 April 1994 and/ or 16 May 1994 refusing permission to hold a rally in Trafalgar Square.

In opposing the application, counsel for the Secretary of State stated that permission had been refused on public order grounds and that the rally did not fall within the narrow exception of being "uncontroversial". Counsel stated that the applicants were:

> "calling on the Government to negotiate with the Sinn Fein before the Sinn Fein renounced its support for violence... The controversial nature of that policy is self-evident. It is equally self-evident that the matter is one of very great sensitivity at the present time."

Leave was refused. The judge found that no legitimate expectation had been created that the rally could be held and that there was no arbitrariness or irrationality or failure to take into account relevant considerations disclosed by the decision of refusal.

It was agreed between the parties that the applicants would not renew their application to the Court of Appeal since the Secretary of State agreed that no point would be taken concerning the applicants exhausting their domestic remedies.

b. Relevant domestic law and practice

Regulatory powers concerning Trafalgar Square

Pursuant to the Trafalgar Square Act 1844 the care control management and regulation of Trafalgar Square was placed in the hands of Commissioners, whose functions are currently exercised by the Secretary of State for National Heritage.

Section 2 (1) of the Parks Regulation (Amendment) Act 1926 provided the Commissioners (and their successors) with the right to

> "make such regulations...as they consider necessary for securing the proper management of [any] park and the preservation of order and prevention of abuses therein..."

Under this provision the relevant Minister made the Trafalgar Square Regulations 1952 (1952 SI 776), paragraph 3 of which provides that permission is required, inter alia, to organize, conduct or take part in any assembly, parade or procession or to make or give a public speech or address in Trafalgar Square.

Policy concerning demonstrations in Trafalgar Square

In 1972, following the IRA bombing of Aldershot which killed 7 civilians, the Secretary of State for the Home Office issued a statement in the House of Commons banning demonstrations in Trafalgar Square which related to Northern Ireland:

> "It has always been accepted that this is one of the best-known places for public demonstrations, and traditionally, it is available to any individual or organisation who wishes to use it. Permission to use the Square is usually given unless it seems likely that the assembly will result in breaches of the law or in grave disorder.. the decision is that of the Secretary of State for the Environment who invariably consults the appropriate Government Departments and always consults the Commissioner of Metropolitan Police.
>
> The position with regard to applications this year in relation to demonstrations concerned with the Irish situation is that such application had to be considered against the background of the terrorist campaign by the IRA in Northern Ireland and the appalling carnage at Aldershot. In those circumstances in view of the situation in Northern Ireland the Government had to decide whether it would be fitting to permit the use of the Square by any organisation that had declared its support for the perpetrators of violence of that kind and they had no hesitation in deciding that it would be an affront to the British people to do so.
>
> The Government having made the decision, it would be wrong to attempt to distinguish between different organisations. The right decision therefore -regrettable as it may be- was to refuse to grant permission to any demonstration on the issue of Northern Ireland in Trafalgar Square until further notice."

In 1976 the Peace People and in 1978 the Better Life for All campaigners were allowed to hold rallies in Trafalgar Square.

In 1984 a rally was also held in the Square by the Apprentice Boys of Derry, which was addressed by the Reverend Ian Paisley, leader of the Ulster Democratic Party who is well known to be a committed Unionist and militant anti-Republican. A letter from the Department of the Environment to "Information on Ireland" (3.2.86) stated:

> "It is true that Dr. Ian Paisley addressed a meeting in Trafalgar Square on 17 November 1984. The Apprentice Boys of Derry...asked for permission to hold a rally with hymns and a speaker from one of their visiting clubs. The Rally was to follow a march from Temple East via Whitehall were two wreaths were to be placed at the Cenotaph in remembrance of all the members of the Apprentice Boys of Derry who died in the two world wars. The organiser categorically stated that the meeting was not to be a political rally. It was only after giving considerable thought to the terms of the application that the rally was allowed to go ahead. As you

know despite the assurances were given, the rally was used as a political arena. We have every intention of avoiding any repetition of that sort of incident."

On 1 October 1991, Baroness Blatch, as spokeswoman for the Department of the Environment, described the justification for the exceptions to the ban:

"Two exceptions have been made to the ban: in 1976 for the Peace People and in 1978 for the Better Life for All campaign organised by the Northern Ireland Committee of the Irish Congress of Trade Unions. Both were regarded as special exceptions for demonstrations that were non-controversial and non-partisan."

In 1993 a rally was held in Trafalgar Square by a group called "Peace 93" formed after the Warrington bombing by the IRA in which two children died.

Permission to hold rallies or meetings in Trafalgar Square was refused to the Anti-Internment League (1972), Sinn Fein (1972), Clann na hEireann (1972,1973 and 1974), British Constitution Defence Committee (1972), Connolly Association (1972), Grand Orange Lodge of England (1973), Irish Civil Rights Association (1973), Troops out Movement (1974, 1975 and 1977), British Peace Committee and Troops out of Ireland (1974), British Peace Committee (1975), Bloody Sunday Commemoration Committee (1978), United Troops Out Movement (1978), Committee for Withdrawal from Northern Ireland (1980), May 7th Committee (1983), Irish Republican Socialist Party (1984) August 18th Committee (1984), Co-ordinating Committee for British Withdrawal from Ireland (1986).

COMPLAINTS

The applicants submit that the ban on their demonstration infringes their freedom to manifest their beliefs in public, their right to freedom of expression and their right to freedom of peaceful assembly. They invoke Articles 9, 10 and 11 of the Convention.

They submit, inter alia, that the right to freedom of assembly is a fundamental right in a democratic society and that Article 11 imposes an obligation on States to take reasonable and appropriate steps to allow peaceful demonstrations to proceed. The interference in this case was not prescribed by law since the discretion conferred under the 1952 regulations is so broad and undefined that it did not enable the applicants to regulate their conduct or to foresee the decision. The purpose of the interference which bans any demonstration which is not "uncontroversial" does not, in their view, constitute a legitimate aim permitted under the second paragraph. In this context the applicants refer to Article 18 of the Convention on the basis that their rights have been interfered with because they are alleged to offend or shock rather than in pursuance of any legitimate aim set out in the second paragraph of Article 11. The applicants further submit that the restriction is not necessary in a democratic society and is not proportionate since, inter alia, there was no foreseeable danger to public safety, a demonstration would have been possible in Hyde Park and it could not be said that a demonstration in Trafalgar Square would make it more liable to violence and any potential problems could have been regulated in co-operation with the police and with the use of stewards for example.

The applicants also contend that they have no effective remedy for their complaints as required by Article 13 of the Convention. Judicial review proceedings allow such decisions to be challenged only on the basis of irrationality and could not directly address the issues in the case.

Finally, the applicants complain that they have been

discriminated against on the ground of political opinion, namely an unwillingness to permit the voicing of views that were contrary to Government policy.

THE LAW

1. The applicants have complained of the refusal of permission to hold a rally in Trafalgar Square. They have invoked Article 9 (Art. 9) (freedom of thought, conscience and religion), Article 10 (Art. 10) (freedom of expression) and Article 11 (Art. 11) (freedom of peaceful assembly) of the Convention.

The Commission notes that the applicants make their submissions principally under Article 11 (Art. 11) of the Convention. The problems of freedom of thought and belief and freedom of expression cannot in this case be separated from that of freedom of assembly. The Commission therefore considers that Article 11 (Art. 11) takes precedence as the lex specialis for assemblies and will in its examination under this provision have regard to Articles 9 and 10 (Art. 9, 10) in interpreting Article 11 (Art. 11) (see eg. No. 10126/82, Dec. 17.10.85, D.R. 44 p. 65).

Article 11 (Art. 11) of the Convention provides:

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

The Commission's case-law establishes that the right to freedom of peaceful assembly, which is a fundamental right in a democratic society, is guaranteed to everyone who has the intention of organising a peaceful demonstration (see eg. No. 8440/78, D.R. 21 p. 138). The applicants' intention to hold a peaceful rally was not disputed in the domestic proceedings. The Commission finds that the refusal of permission to the applicants to hold their rally in Trafalgar Square constitutes a restriction on their rights as guaranteed under the first paragraph of Article 11 (Art. 11).

The Commission has therefore examined whether this restriction was justified under Article 11 para. 2 (Art. 11-2) of the Convention, in particular, whether it was "prescribed by law", pursued one or more of the aims enumerated and was "necessary in a democratic society" to achieve that or those aims.

As regards the criterion of "prescribed by law", the applicants have argued that the discretion conferred on the authorities regulating the use of Trafalgar Square is so broad and undefined as to render them unable to regulate their conduct or foresee the outcome of their request.

The Commission recalls that a law which confers a discretion is not in itself inconsistent with the requirement of foreseeability inherent in this concept, provided that the scope of the discretion and the manner of its exercise are indicated with sufficient clarity to give the individual protection against arbitrary interference (see eg. Eur. Court H.R., Olsson judgment 24 March 1988, Series A no. 130).

While the power to regulate the use of the Square for assemblies is not subject to defined restrictions, the Commission notes that the policy of excepting demonstrations relating to Northern Ireland was the subject of a public statement in the House of Commons and that numerous refusals of demonstrations occurred subsequent to this. It is compatible with the requirements of foreseeability that terms which are on their face general and unlimited are explained by executive or administrative statements, since it is the provision of sufficiently precise guidance to individuals to regulate their conduct rather than the source of that guidance which is of relevance (See eg. Eur. Court H.R. Silver judgment of 25 March 1983, Series A no. 61, pp. 33-34, paras. 88-89).

The Commission accordingly finds that the scope and manner of the exercise of the power to regulate assemblies in Trafalgar Square are indicated with the requisite degree of certainty to satisfy the minimum requirements of the criterion of "prescribed by law".

The applicants have contested that the restriction pursued one of the legitimate aims listed in the second paragraph of Article 11 (Art. 11). The applicants argue that their assembly was banned in Trafalgar Square because it was "controversial" and liable to shock or offend rather than for any reason of public safety or possible disorder.

The Commission notes that counsel for the Secretary of State claimed that the refusal was on grounds of public order. While the applicants contend that the police anticipated no problems with public safety arising out of the proposed rally, the Commission recalls that the policy of banning demonstrations relating to Northern Ireland is founded on the concern to avoid the use of the square by those supporting the use of violence and that, in order not to discriminate between different organisations, the decision was taken to refuse all requests. The Commission finds that, in the circumstances of Northern Ireland where sensitive and complex issues arise as to the causes of the conflict and any possible solutions, the Government can be considered in its general policy of banning demonstrations concerning the subject to be pursuing the aim of preventing disorder and protecting the rights and freedoms of others.

The question remains whether the restriction is necessary in a democratic society. The case-law of the Convention organs establishes that the notion of necessity corresponds to a pressing social need and in particular that it is proportionate to the legitimate aim pursued. In this assessment, a margin of appreciation is left to the Contracting States (see eg. Eur. Court H.R. W. v the United Kingdom judgment of 8 July 1987, Series A no. 121, p. 27, para. 60).

The applicants submit that the restriction was not "necessary" and was not proportionate, referring to the lack of real risk of disorder, the granting of permission to several other groups and the possibility of avoiding any potential problems by using for example stewards and co-operating with the police as to organisational details.

The Commission does not doubt the peaceful intention of the applicants in the present case and it has had regard to the fact that the refusal of permission for the assembly has repercussions also on their freedom to express their views and beliefs as to the necessity for the parties to the conflict in Northern Ireland to enter into negotiations without pre-conditions such as a prior cease-fire. The assessment as to whether this policy of unconditional negotiation was "controversial" or not when compared to the permission previously and exceptionally granted to three non-partisan groups falls, in the Commission's view, within the Government's margin of appreciation. It notes that the Government had previously granted permission to a group -the Apprentice Boys of Derry- which had, contrary to their assertions beforehand, used the occasion for political propaganda purposes and

that there was a concern to avoid a repetition of this. It finds no indication of any element of arbitrariness or bias on the part of the authorities in deciding not to extend exceptional permission to the applicants.

Having regard to the fact that the refusal of permission did not amount to a blanket prohibition on the holding of the applicants' rally but only prevented the use of a high profile location (other venues being available in central London) the Commission concludes that the restriction in the present case may be regarded as proportionate and justified as necessary in a democratic society within the meaning of Article 8 paragraph 2 (Art. 8-2) of the Convention.

It follows that this part of the application must be rejected as manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

2. The applicants have invoked Article 18 (Art. 18) of the Convention which provides:

> "The restrictions permitted under this Convention to the said rights and freedoms shall not be applied for any purpose other than those for which they have been prescribed."

Having regard to its findings above, the Commission considers that the circumstances of the present case do not disclose any indication that the restriction in the present case was applied for a purpose not prescribed by the provisions of the Convention.

It follows that this complaint must be rejected as manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

3. The applicants complain that they have been discriminated against on the basis of political opinion. They invoke Article 14 (Art. 14) of the Convention which provides:

> "The enjoyment of the rights and freedoms set forth in this Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status."

The applicants contend that they have been discriminated against by the Government on the ground of political opinion, namely an unwillingness to permit the voicing of views that were contrary to Government policy.

The Commission recalls however that the authorities apply a general policy of banning demonstrations in Trafalgar Square concerning the situation in Northern Ireland and only grant permission exceptionally where the meeting is "uncontroversial". From the material submitted it appears that numerous requests for meetings in Trafalgar Square from many different groups concerned with the Northern Ireland situation have been refused. While permission has been granted on four occasions since 1972, three involved peace groups with no political overtones and the fourth, involving the Apprentice Boys of Derry, was intended to be a commemorative event for the two world wars but degenerated into a political rally despite firm assurances to the authorities by its organisers.

In light of the above, the Commission finds that the applicants have not established that they have been subject to any difference of treatment on the ground of political opinion.

It follows that this complaint must be rejected as manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the

Convention.

4. The applicants finally invoke Article 13 (Art. 13) of the Convention, which provides that:

> "Everyone whose rights and freedoms as set forth in this Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity."

The Commission recalls however that Article 13 (Art. 13) does not require a remedy under domestic law in respect of any alleged violation of the Convention. It only applies if the individual can be said to have an "arguable claim" of a violation of the Convention (Eur. Court H.R., Boyle and Rice judgment of 27 April 1988, Series A no. 131, p. 23, para. 52).

The Commission finds that the applicants cannot be said, in light of its findings above to have an "arguable claim" of a violation of their Convention rights.

It follows that this complaint must be dismissed as manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission unanimously

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the First Chamber — President of the First Chamber

(M.F. BUQUICCHIO) — (C.L. ROZAKIS)